

⚠ Important information about your pay and conditions

🌐 For help in your language visit fairwork.gov.au/language-help

Employees in Australia's national workplace relations system have entitlements and protections at work, under:

Fair Work laws	Awards	Enterprise agreements	Employment contracts
			
▶ set minimum entitlements for all employees ▶ includes the National Employment Standards	▶ set minimum pay and conditions for an industry or occupation ▶ cover most employees in Australia	▶ set minimum pay and conditions for a particular workplace ▶ negotiated and approved through a formal process	▶ provide additional conditions for an individual employee ▶ can't reduce or remove minimum entitlements

Find your award at fairwork.gov.au/awards. Check if your workplace has an enterprise agreement at fwc.gov.au/agreements

📄 Other information statements

Your employer may also need to give you other information statements.

The Casual Employment Information Statement (CEIS) must be provided to **casual employees** before, or as soon as possible after, the start of employment, and at set times throughout their employment. For more information and to access the CEIS visit fairwork.gov.au/ceis

The Fixed Term Contract Information Statement (FTCIS) must be provided to **employees on a fixed term contract** before, or as soon as possible after, entering into the contract. Find the FTCIS at fairwork.gov.au/ftcis

🐷 Your pay

Your minimum pay rates are in your award or enterprise agreement. If there isn't an award or agreement for your job, you must get at least the National Minimum Wage. Minimum pay rates are usually updated yearly.

National minimum wage From 1 July 2026	 \$26.44 per hour or \$1004.90 per week (based on a 38 hour week) for full-time employees	 \$26.44 per hour for part-time employees	 \$33.05 per hour for casual employees
--	---	--	---

This is the adult minimum rate for employees with no award or enterprise agreement. Find out what you should get at fairwork.gov.au/minimum-wages

Lower rates may apply to juniors, apprentices, trainees, and employees with a disability that affects their productivity. Some awards also have lower introductory rates that might apply for a limited time after an employee starts their job. **You can't agree to be paid less than the minimum pay rates that apply for your job.**



Use our free calculators to check your pay, leave and termination entitlements. Visit fairwork.gov.au/pact

💬 Who can help?

Fair Work Ombudsman	Fair Work Commission
▶ has information and advice about pay and entitlements ▶ provides free pay and conditions calculators, templates and online courses ▶ helps fix workplace problems ▶ enforces workplace laws and seeks penalties for breaches of workplace laws.	▶ deals with disputes about a range of issues, including unfair dismissal, bullying, sexual harassment, discrimination and adverse action at work ▶ approves, varies and terminates enterprise agreements ▶ makes, reviews and varies awards ▶ issues entry permits and resolves industrial disputes ▶ regulates registered organisations.
Visit fairwork.gov.au or call on 13 13 94.	Visit fwc.gov.au or call on 1300 799 675.



National Employment Standards

The National Employment Standards are minimum entitlements that apply to all employees. These entitlements include the right to receive certain **information statements**, request **flexible working arrangements**, and get **superannuation contributions** from your employer.

The table below summarises other National Employment Standards entitlements. Rules and exclusions apply, and **your award or agreement may provide more**. Find more information at fairwork.gov.au/nas

	Full-time and part-time employees	Casual employees
Annual leave	✓ 4 weeks paid leave each year. Part-time employees get a pro rata amount. Eligible shift workers get 1 extra week.	✗ No entitlement to paid annual leave.
Personal leave (Sick or carer's leave)	✓ 10 days paid leave each year. Part-time employees get a pro rata amount.	✗ No entitlement to paid personal leave.
Carer's leave	✓ If all paid personal leave has been used, employees can take 2 days unpaid leave on each eligible occasion.	✓ 2 days unpaid leave on each eligible occasion.
Compassionate leave	✓ 2 days paid leave on each eligible occasion.	✓ 2 days unpaid leave on each eligible occasion.
Family and domestic violence leave	✓ 10 days paid leave each year.	✓ 10 days paid leave each year.
Community service leave Jury duty Voluntary emergency management activities	✓ 10 days paid leave with make-up pay and unpaid leave as required for jury duty. ✓ Unpaid leave to engage in eligible community service. This includes voluntary emergency management activities.	✓ Unpaid leave as required for jury duty. ✓ Unpaid leave to engage in eligible community service. This includes voluntary emergency management activities.
Long service leave	✓ May be entitled to long service leave under the National Employment Standards, an enterprise agreement, or state or territory laws. Amount and eligibility rules vary.	✓ May be entitled to long service leave under the National Employment Standards, an enterprise agreement, or state or territory laws. Amount and eligibility rules vary.
Parental leave Eligible after 12 months employment	✓ 12 months unpaid leave. Can extend up to 24 months with employer's agreement.	✓ 12 months unpaid leave for regular and systematic casuals. Can extend up to 24 months with employer's agreement.
Maximum hours of work	✓ Full-time employees – 38 hours each week plus reasonable additional hours. ✓ Part-time employees – 38 hours or the employee's ordinary weekly hours, whichever is less. They may work reasonable additional hours.	✓ 38 hours or the employee's ordinary weekly hours, whichever is less. They may work reasonable additional hours.
Public holidays	✓ A paid day off if you'd normally work that day. If asked to work, you can refuse if it's reasonable to do so.	✓ An unpaid day off. If asked to work, you can refuse if it's reasonable to do so.
Notice of termination	✓ 1 to 5 weeks notice (or pay instead of notice) based on length of employment and age.	✗ No entitlement to notice of termination.
Redundancy pay Eligible after 12 months employment	✓ 4 to 16 weeks pay based on length of employment. Some exclusions apply.	✗ No entitlement to redundancy pay.
Employee choice about casual employment	✗ Not applicable.	✓ The right to notify an employer to change to full-time or part-time employment in some circumstances. Rules apply.



Flexibility

After 12 months employment, you may have the right to make a written **request for flexible working arrangements**. This includes if you're pregnant, 55 or over, a carer, have a disability, are experiencing family and domestic violence, are supporting a member of your immediate family or household who is experiencing family and domestic violence, or are the parent of, or have caring responsibilities for, a child of school age or younger. Employers need to follow certain rules for responding to a request for flexible working arrangements, including responding in writing within 21 days. Find out more about the rules for flexible working arrangements at fairwork.gov.au/flexibility

You and your employer can also **negotiate an individual flexibility arrangement**. This would change how certain terms in your award or enterprise agreement apply to you. An individual flexibility arrangement must be a genuine choice, it can't be a condition of employment. The arrangement must leave you better off overall.



Right of entry

Union officials with an entry permit can enter the workplace to talk to workers that they're entitled to represent. They can also enter to investigate suspected work health and safety issues or breaches of workplace laws.

They must comply with certain requirements, such as notifying the employer, and can inspect or copy certain documents. Strict privacy rules apply to the permit holder and their organisation. They also apply to your employer. The rules protect your personal information. Find out more about entry permits at fwc.gov.au/entry-permits



Agreement making

Employers and employees (or their representatives, like a union) can negotiate an agreement for their workplace. This process is called 'bargaining' and must follow set rules. The Fair Work Commission checks and approves agreements.

For information about making, varying, or terminating an enterprise agreement visit fwc.gov.au/agreements



Transfer of business

If a transfer of business occurs, your employment with your old employer ends. If you're employed by the new employer within 3 months to do the same (or similar) job, some of your entitlements might carry over. This may happen if, for example, the business is sold or work is outsourced.

Find out about the rules for a transfer of business at fairwork.gov.au/transfer-of-business



Protections at work

All employees have protections at work. You can't be treated differently or worse because you have or exercise a workplace right. For example, the right to request flexible working arrangements, take leave, or make a complaint or enquiry about your employment.

You have the right to join a union or choose not to, and to take part in lawful industrial activity or choose not to.

You have the right to talk about (or not talk about) your current or past pay. You can also discuss the terms and conditions of employment that would be needed to work out your pay, such as your hours of work. You can ask other employees about their pay and terms and conditions of employment, but they don't have to tell you.

You have protections when you're temporarily away from work due to illness or injury. You're also protected from discrimination, bullying, sexual harassment, coercion, misrepresentation, sham contracting, and undue influence or pressure.

Find out more about your protections at work at fairwork.gov.au/protections

Find information about bullying at fairwork.gov.au/bullying-in-the-workplace

For information about workplace sexual harassment visit fairwork.gov.au/sexual-harassment



Ending employment

When your employment ends, your final pay should include **all outstanding entitlements**. This includes wages, unused annual leave and long service leave.

You may be entitled to **notice of termination**, or pay instead of notice. If you're dismissed for serious misconduct, you're not entitled to notice. If you resign, you may have to give your employer notice. You can check if notice is required and what should be in your final pay at fairwork.gov.au/ending-employment

If you think your **dismissal was unfair or unlawful**, you have **21 calendar days** to lodge a claim with the Fair Work Commission. Rules and exceptions apply. Find out more about unfair dismissal at fwc.gov.au

Did you know?

You can find **free online courses** to help you start a new job or have difficult conversations at work.

Visit fairwork.gov.au/learning

You can access a wide range of **free tools and resources**. This includes templates, best practice guides and fact sheets. Find them at fairwork.gov.au/tools-and-resources